

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE 1 OF 31 PAGES		
2. AMENDMENT/MODIFICATION NUMBER 0003		3. EFFECTIVE DATE 09/12/2025		4. REQUISITION/PURCHASE REQUISITION NUMBER DJA-25-APSD-PR-0035		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY ATF - ACQUISITIONS MANAGEMENT DIVISION 99 NEW YORK AVE. NE, #3.S-153 WASHINGTON, DC 20226		CODE 15A000 Sheray Millhouse (O) 2026489071 (F) 2026489654 Sheray.Millhouse@ATF.gov		7. ADMINISTERED BY (If other than Item 6) Acquisition Management Division (AMD) 99 New York Ave NE WASHINGTON, DC 20226		CODE 15A000	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, country, state and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				X		15A00025Q00000069	
						9B. DATED (SEE ITEM 11) 06/15/2025	
						10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
						10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning ____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return ____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Amendment #0003 hereby:

- 1) updates the "INSTRUCTIONS TO OFFERORS," Section 4.3 of this request for quotations (RFQ), to remove the requirement for offerors to sign the standard forms (SFs) 18 & SF 30 and to fill-in FAR clause #52.223-22 due to its Deviation;
- 2) replaces FAR clause #s 52.212-3 & 52.212-5 with their Deviations, thus removing said clause #s 52.222-21 & 52.222-26;
- 3) exchanges FAR clause # 52.222-53 for #s 52.222-41, 52.222-42, 52.222-43, 52.222-55 & 52.222-62;
- 4) updates Sections 2.8, 5.0-7.0 & 17 of the Statement of Work within Section 3.1 of this RFQ - Changes noted in Red font; and
- 5) adds a period (in Red) to the "Mileage" section of the "Points and Payments Schedule" within Section 3.2 of this RFQ.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) Sheray A. Millhouse Contracting Officer	
15B. CONTRACTOR/OFFEROR (Signature of person authorized to sign)	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA By (Signature of Contracting Officer)	16C. DATE SIGNED

Previous edition unusable

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Section 1 - Commodity or Services Schedule

Field, Background-Investigative Services - Anticipating multiple-award, Basic-Ordering Agreements (BOAs) as a result

Firm Fixed Price

SCHEDULE OF SUPPLIES/SERVICES

CONTINUATION SHEET

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Field, Background-Investigative Services - Estimated @ 2,400 hours/points per year per awardee & \$50 per point per year PSC: R615	Previous : 0 Change: 0 Current : 0	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001	Ordering Year 1 PSC: R615	Previous : 0 Change: 0 Current : 0	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001	Ordering Year 2 PSC: R615	Previous : 0 Change: 0 Current : 0	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3001	Ordering Year 3 PSC: R615	Previous : 0 Change: 0 Current : 0	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4001	Ordering Year4 PSC: R615	Previous : 0 Change: 0 Current : 0	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
5001	Ordering Year 5 PSC: R615	Previous : 0 Change: 0 Current : 0	EA	\$ _____	\$ _____

Section 2 - Contract Clauses

Clauses By Full Text

52.212-5 (DEV) Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (Jan 2025)
(DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004)(Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☒ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

___ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

___ (ii) Alternate I (Dec 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

___ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

___ (14) [Reserved].

___ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

___ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

___ (17) [Reserved]

X (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) Alternate I (Mar 2020) of 52.219-6.

___ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) Alternate I (Mar 2020) of 52.219-7.

X (20) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)).

___ (21)(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

___ (ii) Alternate I (Nov 2016) of 52.219-9.

___ (iii) Alternate II (Nov 2016) of 52.219-9.

___ (iv) Alternate III (Jun 2020) of 52.219-9.

___ (v) Alternate IV (Jan 2025) of 52.219-9.

X (22)(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

___ (ii) Alternate I (Mar 2020) of 52.219-13.

X (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

___ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

___ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

___ (26)(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

___ (ii) Alternate I (Mar 2020) of 52.219-28.

___ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

___ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

___ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

___ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

X (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).

X (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025) (E.O. 13126).

___ (33) [Reserved].

___ (34) [Reserved].

X (35)(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

___ (ii) Alternate I (Jul 2014) of 52.222-35.

X (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

___ (ii) Alternate I (Jul 2014) of 52.222-36.

X (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39)(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

___ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

___ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

___ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (46) 52.223-23, Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

X (47)(i) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

___ (ii) Alternate I (Jan 2017) of 52.224-3.

___ (48)(i) 52.225-1, Buy American--Supplies (Oct 2022) (41 U.S.C. chapter 83).

___ (ii) Alternate I (Oct 2022) of 52.225-1.

___ (49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (Nov 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

___ (ii) Alternate I [Reserved].

___ (iii) Alternate II (Jan 2025) of 52.225-3.

___ (iv) Alternate III (Feb 2024) of 52.225-3.

___ (v) Alternate IV (Oct 2022) of 52.225-3.

___ (50) 52.225-5, Trade Agreements (Nov 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

___ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

___ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

___ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

___ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (Oct 2018) (31 U.S.C. 3332).

___ (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

___ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

___ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

___ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

X (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017)(15 U.S.C. 637(d)(13)).

___ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

___ (ii) Alternate I (Apr 2003) of 52.247-64.

___ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

___ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

___ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67).

☒ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67).

___ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

___ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

___ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

___ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause--

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (Section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved].

(x) [Reserved].

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212)

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Section 3 - List of Attachments

Identifier	Title	Number of Pages
1	RFP-ATT. 1_Survey-Factors 1-6 - 6.12.2025 (Fillable)	6
2	RFP-ATT. 2_Questions	1
3	RFQ-ATT. 2-Related_Questions+Responses-U1	4

3.1 Statement of Work

The Contractor shall furnish the necessary personnel, material, equipment, services and/or facilities (except as otherwise specified) to perform the below Statement of Work (SOW) and all Section J attachments, as applicable.

SOW for Field, Background-Investigative Services

1.0 Introduction

1.1 Organization. The United States (U.S.) Department of Justice (DOJ), Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF), Office of Professional Responsibility and Security Operations (OPRSO), Personnel Security Division (PSD) requires contractor support for field, background-investigative services.

1.2 Background

1.2.1 ATF is a law-enforcement organization within the DOJ. ATF's unique responsibilities consist of reducing violent crime, collecting revenue and protecting the public. ATF enforces federal laws and regulations relating to alcohol, tobacco, firearms, explosives and arson by working directly and in cooperation with other government agencies to:

- a. Suppress and prevent crime and violence through enforcement, regulation and community outreach;
- b. Ensure fair and proper revenue collection;
- c. Provide fair and effective industry regulation;
- d. Support and assist federal, state, local and international law enforcement;
- e. Provide innovative training programs in support of criminal and regulatory enforcement functions;
- f. Help reduce the criminal use of firearms; and
- g. Provide for public safety by reducing the criminal misuse of explosives, combating arson, and removing safety hazards caused by improper and unsafe storage of explosive materials.

1.2.2 PSD is charged with ensuring all persons privileged to be employed by or provide a service to ATF are reliable, trustworthy, of good character and conduct, and are of complete and unswerving loyalty to the U.S. PSD maintains the personnel security program and all associated, collateral functions in support of the program. PSD is responsible for conducting background investigations (BIs) on prospective ATF employees and contractors and conducting periodic reinvestigations on current employees and contractors, in accordance with (IAW) established Executive Orders and other regulatory directives, the Privacy Act of 1974, Office of Personnel Management (OPM) regulations, other-relevant regulations from the Office of Management and Budget (OMB), as well as DOJ and ATF policies and procedures.

Since ATF already has an established program to conduct BIs, it has determined the most-efficient and cost-effective method is to employ the services of trained, experienced contractors. A Delegation of Authority Memorandum of Understanding (MOU) between ATF and OPM authorizes PSD to utilize contractors for this work. Contracted investigators with ATF must be known as a “Special Investigator,” hereinafter referred to as contractor(s).

2.0 General Agreement Terms

2.1 This Statement of Work (SOW) outlines the services, requirements, security and other expectations of the contractor privileged to be awarded a Basic-Ordering Agreement (BOA). Per the Federal Acquisition Regulation (FAR) subpart 16.703, ‘A BOA is a written instrument of understanding, negotiated between an agency, contracting activity, or contracting office and a contractor, that contains: (1) terms and clauses applying to future contracts (orders) between the parties during its term, (2) a description, as specific as practicable, of supplies or services to be provided, and (3) methods for pricing, issuing, and delivering future orders under the BOA.

A BOA is not a contract.’ While there’s no guarantee of a future order(s) and similarly, no minimum or maximum guarantee of work, a BOA holder/firm does not become a contractor until there is an order in place. The contractor must adhere to all terms and conditions of the BOA and resulting orders, which includes this SOW.

2.2 The contractor shall assist with other, official-ATF investigations, if assigned such task(s)/assignment(s).

2.3 The contractor has **no** independent authority from ATF to carry a firearm while executing contractor duties under this BOA and resulting order(s).

2.4 PSD will identify the services to be conducted within the order(s) ATF will issue the contractor against this BOA.

2.5 An ATF representative, to include a PSD representative, the Contracting Officer’s Representative (COR) (or the Contracting Officer {CO} where there’s no COR), will conduct contractor oversight and performance monitoring. The BOA and contractor’s responsibilities thereunder are subject to changes in federal law, regulation and policy, which may include procedural changes related to the use of government equipment, security and/or investigative procedures and training requirements. The CO will send modifications to the contractor *via* electronic mail after review and concurrence from the COR.

2.6 The contractor must be available when subpoenaed and/or requested to testify in matters related to investigative work associated with the BOA; however, the contractor is not permitted to serve as an expert witness or consultant against ATF in any criminal, civil, legal or administrative proceeding when it relates to information the contractor obtained during the course of the investigative services.

2.7 The BOA will be effective on the date it is signed by both parties; at which time orders may be issued.

2.8 *BOA Procedures.* While ATF may compete any resulting orders among all BOA holders, ATF reserves the right to issue a direct order(s) to a BOA holder/contractor based on location and case/workload, so not to be prejudicial to other offerors per FAR 16.703(d)(1)(ii), thus eliminating the need for a Justification for Other-than, Full-and-Open Competition (JOFOC) under FAR 6.302. The method ATF used to determine prices to be paid to the contractor is described in detail within the *Points-and-Payment Schedule*. This SOW describes how the contractor shall deliver/render timely services – Any specific dates will be established at the order level, if applicable. Only ATF (specifically a CS/CO and PSD) is authorized to issue orders under this SOW and resulting BOA(s), provided a warranted CO approves them. Each order becomes a binding contract upon the BOA holder’s acceptance of such (*e.g.*, signature or any performance). Since ATF has already established a fair-and-reasonable rate of \$50/point that the offeror must accept prior to being awarded a BOA or issued a resulting order, that shall not be grounds for *Disputes* under FAR 52.212-4(d). While *fast-payment procedures* do not apply to this requirement, *Prompt Payment* under FAR 52.232-25 & *accelerated payments* under FAR 52.232-40 do. Lastly, while the estimated value of each BOA will be \$600K for the 60-month period of performance, ATF reserves the right to raise/lower it at the CO’s discretion *via* a bilateral modification.

3.0 Contractor Qualifications and Requirements

Contractor shall/must:

3.1 Meet PSD's minimum-program requirements and federal requirements as outlined in the aforementioned MOU between ATF and OPM. Typically, though not exclusively, the contractor is a retired, federal investigator who has at least three (3) years of current experience conducting personnel-security, BIs.

3.2 Have a college degree (bachelors) or four (4) years of general experience, four (4) years of specialized experience within the last five (5) years, or one (1) year of specialized, federal-background-investigative experience. *General experience* is progressively responsible experience that demonstrates the ability to problem solve, analyze problems to identify significant factors, gather pertinent data and recognize solutions, plan and organize work, and communicate effectively orally and in writing on a professional level. *Specialized experience*, other than federal-background-investigative experience, includes other investigative experience (e.g., criminal investigations).

3.3 Possess sufficient, investigative abilities to perform the orders assigned by PSD/PSD Contractors.

3.4 Be computer literate and efficient in software programs that support email, word processing, and data entry, which are utilized to electronically receive assignments and submit electronic reports.

3.5 Carry oneself in a manner that reflects positively on ATF and present oneself in a professional manner, be neatly groomed and appropriately attired when working on behalf of PSD.

3.6 Conduct investigations within a 200-mile radius of its business/residence without prior notification. ATF will contact the contractor in advance when travel more than 200 miles (occasional) is required and the contractor needs to accept such assignments.

3.7 Use personal automobiles, information-technology (IT) equipment (e.g., scanner, printer, fax), other than ATF issued laptop, and facilities when performing the duties assigned hereunder. The contractor is expected to possess an automobile with appropriate insurance coverage as required. ATF assumes **no** liability for contractor misconduct or negligence while driving a personal automobile in connection with conducting ATF investigations.

4.0 Scope of Work, Assignment of Orders and Deliverables

Contractor shall/must:

4.1 Agree to abide by all standards, policies and procedures set forth in the *Field Special Investigator (SI) Manual and Guides (hereafter SI Manual)* and all subsequent *Personnel Investigative Notices, Personnel Investigative Policies* and/or other correspondence provided by PSD. Such is demonstrated by acceptance of the BOA (as noted in Section 2.8 above).

4.2 Access the *SI Manual* electronically via the Dashboard within ATF's *Adjudication & Investigative Management Enterprise (AIME)* system using the ATF-issued laptop. The contractor shall also use the worksheets and questionnaires contained within the *SI Manual* as required.

4.3 Be available to accept orders, as requested, without prior notification. The contractor must give PSD a minimum of two (2) weeks, advanced-written notice when unavailable to conduct assignments/orders. The contractor must submit said Notice by updating one's availability under "My Schedule" within the AIME Dashboard **and** by sending an email to PSD (SIAdministration@ATF.gov).

4.4 Conduct face-to-face and/or virtual interviews, as well as record and file reviews; take accurate notes of those interviews/reviews and reduce those notes to writing in the form of a Report of Investigation (ROI).

4.5 Complete one (1) or more of the following investigative requirements with each assignment/order:

- a. Interview Subject;
- b. Verify identity and citizenship status;
- c. Verify employment through records and interviews;
- d. Verify claims of residence through records and interviews;
- e. Verify attendance at educational facilities through records and interviews;

- f. Conduct personal interviews with references;
- g. Develop and interview additional sources;
- h. Conduct military-record reviews;
- i. Conduct law-enforcement checks;
- j. Verify and review public records; and/or
- k. Expand the investigation as necessary.

ATF will specify the following on each order:

- a. The work to be performed by the contractor;
- b. The place(s) where the contractor shall perform the work;
- c. An assignment-initiation date;
- d. A due date determined by the response type (*e.g.* routine or priority); and
- e. The number of estimated points to be paid for each investigative assignment.

4.6 Complete work assignments associated with an order by the due date PSD determines. The contractor must request and get approval for an extension from PSD by emailing SIAdministration@ATF.gov if determining one cannot meet the due date of a particular assignment. Failure to obtain such an extension in advance may result in reduced or non-payment for that particular assignment. Similarly, the Government may terminate the BOA if a respective contractor repeatedly fails to submit ROIs by the required-due date.

4.7 Upload attachments to the report via AIME and submit all documents that provide proof of issue resolution (*e.g.*, proof of payment plan, proof of balance payoff, etc.) via said system when the assignment/order is complete.

4.8 Submit the following deliverables IAW the policies and procedures set forth in the *SI Manual* to the PSD upon completion of an investigative assignment:

- a. Completed ROI;
- b. Request for Payment; and
- c. Any attachments as stated in the ROI or other documents to be included in the investigative file.

4.9 Review all ROIs and all other submissions to ensure the information provided to PSD is factually accurate, meets the assignment requirements, is formatted following PSD procedures and guidelines of the *SI Manual* and PSD's *New Investigator Training*. Contractor shall objectively present the facts as discovered during the investigation and submit ROIs free of errors.

4.10 Make corrections, provide clarifications and conduct missing investigative assignments at no additional cost to the government when not completing investigative assignments and/or reports in compliance with PSD procedures and guidelines.

5.0 Period of Performance (PoP). The PoP for this BOA will be 60 months / five (5) years from the time of award with 12-month, ordering periods.

6.0 Place of Performance. The primary place of work must remain within the geographical location of each awardee's address unless the awardee/contractor notifies ATF of a relocation.

7.0 Contract Type. Although BOAs are not contracts, rather agreement instruments within FAR 16 that establish the framework and terms for possibly-future contracts (*i.e.*, orders), the contract type for any resulting order(s) will be firm-fixed price, to be inclusive of all travel as a direct reimbursement. See Section 17 below for additional information for travel. []

8.0 Credentials. IAW the MOU between OPM and ATF (delegating the authority to utilize contractors for this work), ATF will issue official-ATF credentials to each contractor tasked with performing duties associated with the federal, personnel-security program. The contractor shall never use said credentials for purposes other than conducting official investigations on behalf of ATF or for personal gain. The contractor must safeguard said credentials at all times, never have such out of one's possession, and never photocopy or ever have anyone else photocopy it. The contractor shall report lost or stolen credentials to PSD and ATF's Joint Support Operations Center (JSOC) immediately, as well as to the local-police department.

9.0 Personal-Identity-Verification (PIV) Card

9.1 IAW Homeland Security Presidential Directive-12 (HSPD-12), ATF will request a PIV card for and issue such to each contractor once the BOA has been awarded. The contractor shall use said PIV card as official, DOJ-identification media to comply with HSPD-12's logical-systems access on an ATF-issued laptop.

9.2 A PIV card issuance requires a two- (2-) step process: enrollment and activation. Certain ATF, field-office locations are equipped with a Light Activation Station (LAS) and are capable of issuing PIV cards; however, a contractor may be required to travel to a shared, *USAccess Credentialing Center* if the local-field office does not have an operative/working LAS. ATF will reimburse contractors for the PIV-card step-up and activation. During the activation process, the contractor **must** set a personal-identification number (PIN) for the PIV card. It is the contractor's responsibility to remember the set PIN. If at any time, the PIN must be reset due to an action/inaction by the contractor, ATF will not reimburse him/her for the time or travel associated with such. A PIN can only be reset at a LAS, not electronically or over the phone.

9.3 PIV cards require a re-certification every three (3) years and a full update (new card) every five (5) years. The contractor must have the PIV card re-certified and updated when prompted by ATF/USAccess.

10.0 Background Investigation

10.1 The contractor must undergo and receive a favorably-adjudicated Tier-5 (or successor) BI to determine suitability to access ATF information, IT systems and/or unescorted access to facilities; some contractor may require a Top-Secret Clearance. The BI will be conducted by or under the auspices of the PSD and be performed under such standards as the PSD may establish. If a contractor has a current Tier-5 (or successor) BI with another agency, PSD will follow *Reciprocity* procedures for security; however, ATF will conduct a review to determine the contractor's compliance with all ATF, agency-specific requirements prior to authorizing access to ATF information, IT systems, and/or unescorted access to facilities.

Failure to: complete the required, personnel-security forms; adhere to ATF's conduct and integrity guidelines and/or be in compliance with DOJ's and ATF's agency-specific qualifications may result in immediate disqualification. If no favorably-adjudicated BI received, the contractor may be disqualified from ATF work on those grounds. If disqualified, the contractor will not be granted access to ATF information, IT systems and/or unescorted access to facilities.

10.3 The contractor may be authorized access to ATF information, IT systems and/or unescorted to facilities with an approved *Temporary-Eligibility* (TE) determination. If a TE is needed to service under-staffed coverage locations, PSD will initiate a *Request for TE*, only after advising and gaining the contractor's concurrence.

10.4 The contractor shall be subject to Continuous Evaluation, five- (5-) year reviews and/or any future or subsequent evaluation(s) as mandated by OPM and the Office of the Director of National Intelligence (ODNI), provided the contractor meets the BI requirements and is issued a BOA. If, at any time, there are suitability or security issues/concerns that cannot be resolved or mitigated, ATF will terminate the BOA; and the contractor will no longer be granted access to ATF information, IT systems, and/or unescorted access to any ATF facility.

10.2 Mandatory Personnel Security Reporting Requirements

IAW Department of Justice (DOJ) Policy Statement 1700.04, Department Personnel Security Reporting Requirements, and the Department Security Officer's memorandum dated August 30, 2021, entitled Implementation of Policy Statement 1700.4, *Department Personnel Security Reporting Requirements*, to include Contractor Personnel, all ATF employees and non-ATF personnel (e.g., contractors, task-force officers, and volunteers/interns) are required to comply with federally-mandated, personnel-security-reporting requirements. Said requirements are designed to help safeguard national security or otherwise sensitive information, material, and/or technology.

All ATF employees and non-ATF personnel must review, agree, and acknowledge in the Bureau's and/or Department's approved-training system (currently the *Justice Talent Management System* {JTMS}) their responsibilities to report activities included in DOJ Policy Statement 1700.04.

11.0 IT and Other Equipment Requirements

11.1 ATF will request a laptop for each contractor once the BOA has been awarded and provide the contractor with an email that will include the users identification. The contractor must then follow applicable guidance/instructions to set-up the laptop. The

contractor must also then use the ATF-issued laptop to receive, complete and report investigations. If travel to an ATF field office for technical issues encountered that cannot be resolved remotely, the contractor will need prior approval from PSD.

11.2 The laptop will be fully imaged IAW the requirements established by ATF, Office of Science and Technology (OST) and PSD. **The contractor must only use ATF laptops to process and maintain ATF information.**

11.3 ATF will issue the following IT/Government-Furnished property (GFP).

- a. Laptop;
- b. Docking station; and
- c. Two (2) power cords (90W and 180W).

The ATF laptop, the information it contains and its peripherals are the property of ATF; and at the conclusion of the BOA or when so directed by PSD, the contractor must return all to ATF. The contractor, even when directed by the ATF helpdesk, must contact PSD (SIAdministration@ATF.gov) for instructions regarding property returns. All property assigned to a contractor is considered accountable property for PSD and must only be returned, replaced or transferred when coordinated with PSD to ensure accurate-property accountability. The contractor shall respond to and provide all property information (i.e., serial number, ATF assigned PINs, etc.) when requested by PSD to ensure compliance for any mandatory, ATF-inventory audit.

11.4 Due to security concerns, the contractor shall only use the ATF laptop for completion, submission and receipt of ATF-field assignments and to correspond with all involved in the investigative work. **The contractor is prohibited from processing ATF information on a personal computer or other non-ATF issued system.**

11.5 OST regularly pushes security updates to ATF laptops. When logging into the laptop, the contractor may occasionally be prompted to restart it due to critical-security updates. The contractor must follow these prompts as security updates are necessary to ensure proper security features and functionality are maintained on the laptop. The contractor is required to log into the laptop at least once a week (best on a Friday evening after 5:00 pm Eastern Time {ET}), regardless of whether an assignment/order is placed, to ensure the laptop is consistently updated and continues to function properly.

11.6 Due to varying connection availabilities, ATF cannot guarantee a wireless connection. Therefore, the contractor must have access to a broadband-internet connection, such as cable or a Digital Subscriber Line.

11.8 The contractor is permitted to connect personal printers, scanners and monitors to the laptop **WITH** assistance from the ATF helpdesk (currently 877.875.3723 & ServiceDesk-OSTCS@ATF.gov). The contractor must direct any questions or issues that arise regarding the laptop (e.g., technical issues, damaged property, stand-alone equipment set-up, etc.) to the ATF helpdesk, not PSD. There may be times when a contractor must travel to an ATF-field office to diagnose and/or resolve technical issues related to the ATF laptop. In these cases, the contractor must first notify PSD (SIAdministration@ATF.gov) and receive approval before traveling, even if directed by the ATF helpdesk. PSD may provide reimbursement for a contractor's time and travel expenses IAW the *Points and Payment Schedule*, but reserves the right to deny compensation if the contractor fails to notify and receive approval from PSD prior to such traveling.

11.9 The contractor shall purchase printers, scanners, facsimile machines and/or stand-alone monitors, if needed. ATF and PSD are **not** responsible for the purchase, maintenance or repair of these items; and the contractor will not be reimbursed for any cost associated with them. Similarly, ATF will not reimburse local-telephone calls or cellular-airtime charges as such are considered the contractor's business expenses.

12.0 Facilities. The contractor shall use its own, private facility(ies) for the administrative actions (e.g., reviewing case documents, scheduling appointments, etc.) associated with investigations and preparing the ROIs in connection with those investigations. ATF neither assumes any responsibility for the purchase or maintenance of a contractor's personal facility(ies); nor will ATF reimburse a contractor for use of such facility(ies).

13.0 Mandatory Training. The contractor must complete PSD's "*New Investigator Training*" in its entirety prior to being added to PSD's active, *Special Investigator Roster* – The course currently consists of three (3) phases. The contractor must also complete the "*Non-Disclosure for Access to Unclassified Sensitive Information*" and the annual "*Information Security Awareness with Acknowledgment of the Rules of Behavior*" training through the Bureau's and/or Department's approved-training system (currently JTMS). While ATF will compensate the contractor for PSD's "*New Investigator Training*" and the mandatory, "*Information Security Awareness*" training at the rates detailed within the *Points and Payment Schedule*, ATF will not compensate the contractor for the time associated with all other, mandatory-training courses as they're requirements of the BOA's terms. (*Most training courses take less*

than one {1} hour to complete.) All mandatory training is provided free of charge through the Bureau's and/or Department's training system (currently JTMS) and are accessible through the ATF laptop.

14.0 Contractor Certification. Each contractor must sign a *Contractor Certification* which declares all reports and any supplemental material prepared, whether submitted in hard copy or electronic format represent actual, reported-investigative work the contractor performed and conducted in compliance with the BOA's requirements.

15.0 System for Award Management (SAM) Registration

15.1 All firms/businesses must register *via* SAM and receive a Unique Entity Identifier (UEI) to do business with the federal government and receive federal funds. Registration with SAM enables/allows the contractor to work as a small business within the contractors' state/locality for this requirement.

15.2 The contractor shall make changes to the SAM information (*e.g.*, name, address, telephone number, company name or financial information) as necessary to ensure its information remains updated/current. ATF's financial system is directly connected to SAM; therefore, if a registration is not current or active, ATF will be unable to assign orders to a contractor or process payments for services rendered. Thus, proper and prompt updates and an active registration are extremely important.

16.0 Protection of Sensitive Unclassified Information

16.1 All data and information associated with a BI (*e.g.*, notes, copies of testimonies, copies of ROIs, etc.) are the sole property of ATF. Therefore, the contractor must make every reasonable effort to protect and safeguard such against unlawful disclosure at all times. The contractor must retain all notes and other investigative materials (*i.e.*, records, transcripts, etc.) for 90 days after ATF/PSD approves the report. The contractor must destroy, by shredding, all notes and investigative material at that time. If PSD requests case notes for quality-control purposes or otherwise, the contractor shall submit such within 90 days of an approved report.

16.2 The contractor must protect and safeguard all information obtained during the course of an investigation and only divulge on a need-to-know basis to an authorized party(ies) where required/necessary, even though such may be considered *sensitive-unclassified information*. The contractor must not disseminate to any parties outside of PSD without prior approval and written consent from PSD. The contractor must utilize the ATF-issued laptop to complete and submit ROI's and to virtually communicate with PSD regarding case assignments; and at no time may a contractor forward information from the ATF laptop to personal email or vice versa. Similarly, the contractor shall not transmit information from an outside source (*e.g.*, copy machine) to personal accounts. The contractor must not transmit sensitive information *via* unsecured email or Internet or disclose such to an unauthorized party(ies). The contractor must conduct and complete all orders and associated tasks/assignments and not re-assign to another individual, be it another contractor, employee or sub-contractor.

16.3 The contractors must place all documents, files, and ATF laptop in a locked container when not in use. The contractor must complete one's own data processing and report writing and not use anyone else like a typist/transcriptionist to do so.

17.0 Invoicing, Travel, Payment Procedures and Reimbursement

17.1 Upon completion of an investigative assignment, the contractor shall submit an invoice/request for payment to Finance.Branch@ATF.gov and PSD (SIAdministration@ATF.gov) per clause #ATF-14. ATF agrees to reimburse the contractor for an assignment/order(s) based on the *Points and Payment Schedule*. Note: Reimbursement rates are subject to change at any time as determined by ATF and PSD.

17.2 In addition to investigative points successfully completed, ATF will reimburse the contractor for reasonable and ordinary expenses incurred in the performance of the assignment(s), such as tolls, parking fees, and fees for obtaining court documents, etc. as detailed in the *Points and Payment Schedule*. Travel must comply with FAR 31.205-46 and GSA's Federal Travel Regulations (FTR), also Fly America Act, if applicable. □ ATF does not anticipate any other-direct costs (ODCs).

17.3 ATF will reimburse the contractor for mileage driven, at the prevailing rate established by the General Services Administration (GSA) or as directed by ATF, when the contractor uses a personal automobile to perform assignments.

17.4 Certain travel costs/expenses (*e.g.*, transportation, lodging, meals and incidental expenses) incurred by the contractor on official ATF business are considered reasonable and allowable only to the extent they don't exceed on a daily basis the maximum *per-diem* rates within the FTR at the time of travel per FAR subpart 31.205-46. For this BOA, travel will be directly reimbursed, not to exceed \$75,000 per BOA.

When travel beyond the contractor's standard-coverage area is necessary and specifically authorized by ATF to complete an assignment, ATF will reimburse the contractor (e.g., a temporary-/travel-duty location/assignment {TDY}). All travel outside of the contractor's coverage area must be pre-approved by the PSD, if warranted, to be reimbursed. ATF will provide reimbursement for travel and other approved expenses based on the government's *per-diem* rates. The contractor must review GSA's website for the current *per-diem* rates for the travel locality. The contractor shall make all travel arrangements; and under no circumstances, will ATF make monetary advances for anticipated or scheduled travel. Approved reimbursement expenses and rates are detailed in the *Points and Payment Schedule*. When a contractor is scheduled to go on TDY or is travelling, yet available for assignments, the contractor must update the "My TDY" dates of travel via AIME's Dashboard.

To be reimbursed, the contractor shall submit travel reimbursement requests in sufficient time for the COR and/or CO to give prior consideration and approval, if warranted, and must identify the: (i) traveler's name; (ii) destination(s), including itinerary with dates; and (iii) purpose of the travel IAW FAR subpart 31.205(a)(7).

To be reimbursed, the contractor shall also include a detailed breakdown of the actual travel expenses incurred and expended on its bi-monthly invoice(s). The contractor must maintain the original or legible copy of receipts for all travel expenses invoiced since ATF reserves the right to request evidence of any travel expenses paid.

17.5 If awarded a BOA, the offeror is responsible for filing its own state and federal taxes. ATF will provide a 1099-MISC tax form to qualified contractors. ATF is not required to provide said form to any contractor that is incorporated and/or does not receive a minimum of \$600 during any calendar year from ATF.

18.0 Performance and Quality Control

18.1 The COR will monitor the performance of the contractor to ensure the contractor completes tasks and meets timeliness goals IAW all rules, regulations, and mandates issued by OPM, the ODNI, DOJ and ATF. Due to the continuous and evolving nature of the personnel-security sector, a contractor's responsibilities and duties are subject to changes by federal law, regulation and policy, which may include procedural changes related to the use of government equipment, security procedures and investigative principles and priorities. Therefore, ATF may modify the BOA and SOW unilaterally and/or without prior notice. High-quality services and timely completion of tasks are imperative to PSD's success.

18.2 ATF must review the BOA annually and continuously monitor the performance of the contractor to determine continued eligibility to receive future orders, BOA renewal or even a BOA termination.

18.3 ATF must investigate complaints of inappropriate conduct, violations of any policies, procedures and/or regulations; and if substantiated, the contractor may receive a warning notice or BOA termination. The same results are warranted if a contractor's performance fails to meet the standards necessary for the position based on ATF's quality-control and quality-assurance reviews.

18.4 ATF will routinely survey those persons the contractor has contacted to determine if the contractor conducted the interview and represented the Bureau in a professional manner. Repeated instances of negative feedback from those surveyed will result in a BOA termination. PSD will also conduct random, *Check-Ride* assessments to directly evaluate a contractor's performance during interviews. ATF will provide formal feedback to the contractor in writing. Any noted improvements required, if not rectified, may result in a BOA termination.

18.5 ATF will report the contractor to the DOJ Office of Inspector General for investigation if suspected of submitting fraudulent invoices or work-related materials.

19.0 Closeout. The contractor shall submit a final invoice within 45-calendar days after the end of the last-performance period if it hasn't already submitted such. Within 15-calendar days of receiving the final payment, the contractor shall furnish a completed and signed *Release of Claims* to the CO; such may be in the form of a Closeout-modification to the contract.

3.2 Points and Payments Schedule

The Personnel Security Division (PSD) within the Bureau of Alcohol, Tobacco, Firearms & Explosives (ATF) pays for investigations on a point basis; the value of each point is \$50. PSD will provide the *Special Investigator (SI)*/contractor a Letter of Instruction (LOI) detailing the particular number and type of leads to conduct as required.

The below, standard-investigative points take into consideration the following factors:

1. Preparation time;
2. Conducting the review/interview;
3. Organizing and developing your notes in preparation for write up; and
4. Writing up the Report of Investigation (ROI).

Standard-Investigative Points

Investigative Lead	Number of Points
Enhanced-Subject Interview/Individual Interview	6
Record Check/File Review	1
Educational Record	1
Source Interview	1
Personal-Identity-Verification (PIV) Check	1
Subject Re-Contact	TBD[1] by PSD

Special-Reimbursement Rates

Priority Cases

The LOI will identify a “Response Type” of either routine or priority. If the case is identified as a Priority, the SI must submit the case on time and error free to qualify for additional points. Priority points are awarded based on the total number of investigative points earned during the investigation and/or administrative points. ATF will compensate cases designated as a priority based on the following scale:

Total Investigative Points	Number of Priority Points
.5 to 2	1
2.5 to 5	2
5.5 to 8	3
8.5 to 11	4
11.5 to 14	5
14.5 to 17	6
17.5 to 20	7
20.5 to 23	8
23.5 to 26	9
26.5 to 29	10
29.5 to 32	11
32.5 to 35	12
35.5 to 38	13
38.5 to 41	14
41.5 to 44	15
44.5 to 47	16
47.5 to 50	17

Administrative Points

Administrative points are additional points paid for time lost and other delays caused by uncontrollable circumstances as determined by PSD for all assignments. Administrative points are awarded based on the total-investigative points earned during the investigation, not including priority points. To receive administrative points, the contractor/SI must submit the ROI by the due date. ATF will compensate routine cases based on the following scale.

Total Investigative Points	Number of Administrative Points
0.5-2.5	0.5
3-5.5	2
6-10.5	2.5
11-15.5	3.5
16-20.5	4
21-25.5	4.5
26-30.5	5
31-35.5	5.5
36-40.5	6
41-45.5	6.5
46+	7

Mileage

ATF will reimburse the SI's driven mileage per the standard-government rate for mileage as applicable and as established by the General Services Administration (GSA) and/or PSD's discretion. Part of this process is automated upon data entry.

- PSD's Rate – Effective January 2024 - \$0.67/mile (for POVs)
- GSA's Rate – Effective January 2025 - \$0.70/mile (for POVs)

Training

- New Investigator Training Rate: 7 points
- Other mandatory training courses and/or annual-refresher training: PSD will determine the SI's reimbursement eligibility. Training is a requirement of the Basic Ordering Agreement's terms, and the time associated with these courses may not be reimbursed.

PIV Card

- Initial, PIV-card Setup Rate: 1 point, plus mileage
 - ATF will reimburse the SI for the initial, PIV-card setup. If the mileage to the PIV card enrollment/activation center is more than 200 miles round trip, the SI must contact PSD prior to travel.
- Personal-identification number (PIN) Reset Rate for the PIV card: No Compensation
- If at any time, the SI must have the PIV-card's PIN reset because of its own action/inaction, ATF will not reimburse for the time or travel associated with that activity.
- PIV-card Re-Certifications/Updates Rate: Mileage TBD by PSD. SI's must contact PSD for approval.

ATF Laptop/Technology Issues

- Initial Pickup and Setup Rate: 1 point, plus mileage
 - SI shall send an email to SIAdministration@ATF.gov with mileage and time spent and an LOI/Payment Authorization will be created and saved to the SI's approved folder.
 - If unforeseen technical issues occur during the initial setup, SI must document any issues and time associated with resolution of the issue. PSD will review the documentation and may provide additional compensation.

Technical Issues

- Rate: 1 point for the first three (3) hours, 1 point for each additional hour, plus mileage
 - **In the event an SI must travel to an ATF field office to diagnose and/or resolve a technical issue(s) related to the ATF laptop, the SI must first notify PSD and receive approval before traveling.** PSD reserves the right to deny compensation if the SI fails to notify PSD prior to traveling to the field office.
- Negligence/Improper Use Rate: No Compensation.
 - If damage or technical issues are incurred due to the SI's improper use or negligence, ATF will not compensate the SI for time or travel related to issue resolution. Additionally, the SI may be held personally liable for replacement of equipment if the property is lost, stolen or damaged due to negligence.

Travel-Duty Status (TDY)

When travel beyond the SI's standard-coverage area (more than 200 miles of the SI's place-of-business address) is necessary and specifically authorized by PSD to complete an assignment, ATF will provide reimbursement based on actual expenses as allowable under the BOA. **All travel outside of the SI's standard-coverage area must be submitted in advance for PSD's pre-approval to qualify for compensation.** The SI must keep all receipts and submit them along with the Request for Payment to receive compensation.

ATF will reimburse the SI for the following according to the Government's per-diem rates:

- Expenses for travel (Airlines must be coach or business class, whichever is less.);
- Expenses for lodging accommodations;
- Mileage expenses to and from transportation carrier (*e.g.*, airport, train station, etc.);
- Meals and incidentals: 75% for first and last day of travel and 100% for full day(s) on travel;
- Rental car and fuel charges;
- Taxi fares;
- Half (½) point per hour while in air/train travel to and from destination; and
- Miscellaneous expenses and fees: baggage fees, lodging taxes, internet connection, etc.

The SI may request to use a POV to travel to the destination, yet must receive PSD's prior approval, if warranted.

ATF will not reimburse for the following:

- Time spent waiting at transportation carrier (*e.g.*, airport, train station, etc.), including layovers; and
- Travel time to and from transportation carrier (*e.g.*, airport, train station, etc.).

If unforeseen circumstances or unexpected expenses that are not documented above occur, the SI must keep all receipts and document the information in the Request for Payment. PSD will review the documentation and determine if reimbursement is applicable.

The SI must review GSA's website for the current, per-diem rates for the travel locality because ATF will reimburse according to said rates. SI must make every effort to obtain the government rate for lodging. If unable to secure the government rate, the SI must contact PSD and request advance approval to exceed the local, per-diem rate; otherwise, the SI may not be compensated for the difference. If the SI does not contact PSD the difference may not be reimbursed. SI must utilize whichever mode of transportation is in the best interest of the government.

SI must make their own travel arrangements; and under no circumstances, will ATF make monetary advances for anticipated or scheduled travel.

General and Business Expenses

ATF will reimburse the SI for reasonable and ordinary expenses incurred in the performance of assignments, such as tolls, parking fees, and fees for obtaining court documents, etc.

ATF will not reimburse the SI for business expenses such as office space, office materials (paper, pens, printer toner, etc.). SI shall purchase all equipment (printers, scanners, facsimile machine, etc.), as necessary, per the Statement of Work and consider said purchase a business expense(s).

If the SI has any questions related to approved and non-approved expenses, the SI shall contact PSD for additional information.

[1] TBD = To be determined

3.3 ATF's Points of Contact

Contracting Officer (CO): Sheray Millhouse | Sheray.Millhouse@ATF.gov | 202.648.9071

CO's Representative (COR): To be disclosed at award

Section 4 - Solicitation Provisions

52.212-1 Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
 - (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
 - (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show--

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and--

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the

time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) *Availability of requirements documents cited in the solicitation*.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by--

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier*. (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved].

(l) Debriefing. If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

- (1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.
 - (2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.
 - (3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.
 - (4) A summary of the rationale for award;
 - (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.
 - (6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.
- (End of provision)

SECTION 4.1 | OVERVIEW

The Bureau of Alcohol, Tobacco, Firearms & Explosives (ATF) has a requirement for field, background-investigative services per the Statement of Work (SOW – *Section 3.1 of this solicitation/request for quotations {RFQ}*). The North American Industry Classification System (NAICS) code for this 100% set-aside buy is **561611**, *Investigation and Personal Background Check Services*, with a size standard of **\$25M**.

ATF intends to issue multiple, Basic Ordering Agreements (BOAs), as needed, to a sufficient number of responsible and qualified offerors throughout the United States, depending on location and ATF workload in accordance with (IAW) the Federal Acquisition Regulation (FAR) Parts 12, 13.5 & 16.703. Having a sufficient number of sources, geographically distributed, that meet/exceed the minimum requirements will ensure prompt and efficient performance of background investigations.

Per the SOW, the period of performance shall be for 60 months / five (5) years from the time of award. At the conclusion of 60 months, an offeror must re-apply through another solicitation, if available for continued services. ATF will evaluate its quotation in consideration for issuance of a new BOA. ATF will re-evaluate each-awarded BOA every 12 months and may issue a written modification to terminate a BOA at any time. BOAs awarded under this RFQ will be in effect for five (5) years from the date of award, unless further extended pursuant to FAR 52.217-8, 52.217-9 or 52.237-3, canceled or terminated pursuant to the applicable provision(s) and/or clause(s) incorporated within this RFQ.

The place of performance of the BOAs must be within the geographical location of the awardee's address.

Due to the nature of the *Federal Personnel Security Program*, changes in policies, procedures and guidelines are subject to change without notice. Therefore, ATF and the Personnel Security Division (PSD) reserve the right to modify the SOW and *Points-and-Payment Schedule (Sections 3.1 & 3.2, respectively, of this RFQ)* at any time. Hence, all offerors (currently contracted under a related BOA and any new offerors thereafter) agree to adhere to any new or updated requirements, policies and/or procedures.

This is a standing solicitation/RFQ from which the Government contemplates award of multiple BOAs for the services described within the SOW (*Section 3.1 of this RFQ*). This RFQ will remain open and in effect until 5:00pm ET June 15, 2030 unless amended, extended, canceled, or replaced by an updated RFQ. As such, offerors may submit for consideration of award at any time within said-closed date. Before award, offerors may submit a quotation modification(s) to address a deficiency(ies); offerors may also submit a final-quotation revision as requested by ATF. If an offeror fails to meet ATF's established time frames for such modification(s)/resubmission(s), ATF may reject it. Similarly, ATF may reject a modification/resubmission or revision if the initial deficiency(ies) remains. Quotations submitted after the close date and time will be considered LATE per FAR 15.208(b)(1), thus not considered unless one (1) of the exceptions applies.

ATF reserves the right to amend this RFQ to update any aspect of it, even to add quotation-submission periods with open and close dates. Since this RFQ is subject to change without prior notification, any interested offeror must ensure its

quotation submission adheres to the current requirements, guidelines and instructions found in the most-recent posting (e.g., latest amendment).

ATF also reserves the right to retain all quotation materials from any offeror that is denied based on geographic location only. As the needs of ATF's *Contract Background Investigation Program* change, ATF may reconsider for award offerors previously denied solely for that reason.

Additionally, the offeror is responsible for all costs associated with submitting a quotation, not ATF.

If awarded a BOA, the offeror is responsible for filing its own state and federal taxes. ATF will provide a 1099-MISC/1099-NEC tax form to qualified offerors. ATF is not required to provide said form to any contractor that is incorporated and/or does not receive a minimum of \$600 during any calendar year from ATF.

SECTION 4.2 | PRIORITY CITIES

An offeror outside of the priority cities listed below may still respond to this RFQ.

Alabama – Montgomery

Alaska – Anchorage, Fairbanks, Juneau

Arizona – Yuma

California – Bakersfield, Redding, San Diego

Connecticut – Hartford

DC/MD/VA

Florida – Tampa

Guam – Any location

Hawaii

Idaho - Boise

Iowa – Cedar Rapids

Kentucky – Lexington, Knoxville

Louisiana – Lafayette, New Orleans, Shreveport

Maine – Any location

Massachusetts – Springfield, Worcester

Michigan – Lansing

Mississippi – Jackson

Montana – Helena

Nebraska – Omaha

New Jersey – New Brunswick, Trenton, Newark, Northern NJ (Ramsey area).

New York – Syracuse, Rochester

North Dakota – Any Location

Ohio – Dayton, Toledo

Oregon – Eugene

Pennsylvania – Harrisburg, Scranton, State College, Williamsport, Pittsburgh

Rhode Island – Any location

South Dakota – Any location

Tennessee – Knoxville

Texas – Corpus Christi, Eagle Pass, Laredo, Houston, San Antonio

Utah – Salt Lake City

Virgin Islands

Washington – Yakima, Spokane

West Virginia - Charleston

Wyoming – Any Location

SECTION 4.3 | INSTRUCTIONS TO OFFERORS

Quotation Requirements:

[By submitting a quotation package as a response to this RFQ,] the offeror confirms it has read and understands the **terms & conditions** (T&Cs) set forth in this RFQ, including all provisions & clauses, especially 52.212-4.

The offeror shall also complete the fill-ins for all applicable provisions and clauses for this RFQ, including 52.204-20, 52.204-24, 52.204-26, 52.209-12, 52.212-3, ~~52.223-22~~ and 52.229-11 and include with its quotation-submission package unless it has already completed and updated such as part of its registration/renewal via the System for Award Management (SAM). [While the **standard form** (SF) 18 notes the full text of FAR provisions and clauses can be found via <https://www.acquisition.gov/far/part-52>, the full text of ATF's & DOJ's provisions and clauses, including those beginning with 2852 **from the Justice Acquisition Regulation**, can be found within the SF 18.]

To be considered responsive to this RFQ, offerors must also submit complete responses to the questions, thus a complete package addressing all factors, in this RFQ to be considered and evaluated. ATF may not, at its own discretion, consider/evaluate incomplete packages. ATF will initially screen offerors by location before conducting a review of the offeror's past performance, qualifications, experience, capabilities, and acceptability responses. ATF has already predetermined the price per the SOW and as detailed within the *Points and Payment Schedule*.

[The offeror shall use ATT. 2, "...Questions," to submit questions, if any, and send such to the CO listed on this announcement: Sheray.Millhouse@ATF.gov, with a carbon copy (Cc) to SIAdministration@ATF.gov no later than **Wednesday, June 18, 2025**.

Similarly, the offeror shall send all quotations, in writing, to the CO listed on this announcement: Sheray.Millhouse@ATF.gov, with a Cc to SIAdministration@ATF.gov IAW "SECTION 4.1 | OVERVIEW" within this RFQ.]

ATF will only accept written/typed responses submitted directly from the individual offeror (person). ATF will also notify the offeror, in writing, of the evaluation results for its quotation. ATF will not entertain/consider/accept phone calls.

The offeror shall respond completely to all questions and/or statements below and herein accordingly to the respective instructions. **Failure to respond to any of the questions and/or statements may result in an automatic failed evaluation.**

Factor Questions & Statements:

The offeror shall use ATT. 1, "...Survey-Factors 1-6...", to completely respond to each factor; said file includes all of the statements and questions for the below Factors (1-6). The offeror shall attach additional pages to it, if necessary.

Past Performance (Factor 1)

The offeror shall use ATT. 1 to provide its past-performance information for efforts similar to ATF's subject requirement, to include federal, state and local government, as well as private industry, for each contract/purchasing vehicle. The offeror shall **not** include more than three (3) contract/purchasing vehicles within the last three (3) years. As a result, offerors may need to submit as many as three (3) versions of ATT. 1 – One (1) version will have the offeror's responses for all sections and factors completed while the other two (2) versions will just have Factor 1 completed.

Qualifications and Experience (Factor 2)

The offeror shall completely respond to the eight (8) questions and/or statements within ATT. 1 for this factor in no more than three (3) to five (5) sentences.

The offeror shall also:

1. include examples of its qualifications and how those duties relate to its past and/or current performance; and
2. submit a current, professional resume, to include references for the two (2), most-recent employments.
 - a. The resume shall highlight the offeror's experience and capabilities in performing BIs. The offer shall have at least three (3) years of current experience conducting personnel-security BIs.

ATF reserves the right to offer all offerors that receive a rating of *Satisfactory/Pass* for all factors and are in the needed location an interview. If offered such by ATF, offerors must submit to/participate in an interview. The interview will consist of a series of questions related to the offeror's past performance, qualifications and experience. Following the interview, offerors will be required to submit a writing sample (*e.g.*, sample Report of Investigation). ATF will provide the offerors with guidance for the writing-sample requirements during the interview and additional information *via email* upon the completion of the interview. The offeror will have three- (3-) business days to provide PSD with the completed, writing sample.

Capabilities (Factor 3)

The offeror shall completely respond to the four (4) statements within *ATT. 1* for this factor, describe completely its abilities for each category, and provide at least one (1) example for each statement.

Acceptability (Factor 4)

The offeror shall completely respond to each of the 10 questions within *ATT. 1* for this factor by selecting either "Yes" or "No."

Location (Factor 5)

Since the offeror needs to be within 200 miles of a priority city (SECTION 4.2 of this section), it shall select "Yes" or "No" appropriately within *ATT. 1* for this factor. Per the above ATF will initially screen the quotation for this information prior to reviewing/evaluation the rest of the offeror's quotation.

Price (Factor 6)

While the offeror shall select "Yes" or "No" appropriately within *ATT. 1* for this factor, it must agree to ATF's pre-determined rate(s) as detailed in the *Points-and-Payment Schedule* to be considered for award.

See directly below 52.212-2 within this RFQ for SECTIONS 4.4-4.6.

A.2 ADDENDUM TO FAR 52.212-1, Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023)

The terms and conditions for the following provisions are hereby incorporated into this solicitation as an addendum to FAR provision 52.212-1.

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision

by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

Provision	Title	Fill-ins (if applicable)
52.212-3 (DEV)	Offeror Representations and Certifications-Commercial Products and Commercial Services (May 2024) (DEVIATION FEB 2025)	

Provisions By Full Text

[END OF ADDENDUM TO FAR 52.212-1]

52.212-2 Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Past Performance; Qualifications and Experience; Capabilities; Acceptability; Location; and Price.

[Contracting Officer shall insert the significant evaluation factors, such as (i) technical capability of the item offered to meet the Government requirement; (ii) price; (iii) past performance (see FAR 15.304); and include them in the relative order of importance of the evaluation factors, such as in descending order of importance.]

Technical and past performance, when combined, are significantly less important than cost/price *[Contracting Officer state, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when combined, when compared to price.]*

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

See directly below 52.212-1 within this RFQ for SECTIONS 4.1-4.3.

SECTION 4.4 | ADDITIONAL INFORMATION

There are no addenda to any of the provisions and clauses; and the CO has not determined any additional, contract requirement(s) or T&Cs (such as contract financing arrangements or warranty requirements) necessary for this acquisition and consistent with customary commercial practices.

The Defense Priorities and Allocations System (DPAS) is not applicable to this acquisition, thus no assigned rating.

SECTION 4.5 | EVALUATION INFORMATION AND SELECTION CRITERIA

IAW FAR 52.212-2, *Evaluation--Commercial Products and Commercial Services*, and FAR subpart 13.5, *Simplified Procedures for Certain Commercial Products and Commercial Services*, ATF will evaluate timely quotations as applicable by assessing the offerors' responses to all six (6) factors within this RFQ, to include their writing sample and interview responses as applicable.

ATF will use the following factors (in descending order of importance) to evaluate quotations: past performance; qualifications and experience; capabilities; acceptability (of ATF's T&Cs, including the point-payment rate); location; and price (although pre-determined by ATF to be fair and reasonable). All five (5) non-price factors, when combined, are significantly less important than cost/price.

ATF will review the offeror's quotation package, including its writing sample and interview responses to determine which offeror(s) will be considered for a BOA. ATF may document in the contract file any relative strengths, deficiencies, significant weaknesses, and/or risks supporting the quotation evaluation, if applicable. While the offeror's overall evaluation must be "Satisfactory" or higher to be considered for a BOA, it's not a guarantee of an award.

The offeror must also be able to obtain a favorably-adjudicated, Tier-5 background investigation (BI) and must register *via* SAM prior to submitting a quotation per FAR 4.1105. These are mandatory requirements, and any offeror that fails to comply with such will be eliminated and removed from further consideration of award.

Past Performance (Factor 1)

ATF will use this adjectival-rating scale (from low to high): Unsatisfactory, Marginal, Satisfactory, Very Good, Exceptional, and Neutral for this factor. "Neutral" indicates ATF will not evaluate the offeror favorable/unfavorably because the offeror lacks a record of relevant past-performance information or such is unavailable.

ATF will evaluate how well an offeror performed similar work in the past/present, to include its compliance with laws and regulations. As such, ATF may contact any of the offeror's customers and references to ask whether they believe the: (1) offeror was capable, efficient, and effective; (2) offeror's performance conformed to the T&Cs of the contract/agreement vehicle; (3) offeror was reasonable and cooperative during the performance; and (4) offeror was committed to customer satisfaction.

While ATF will consider the information the offeror provided, ATF may also use other sources of information from other sources (*e.g.*, the Contractor Performance and Rating System, the Federal Awardee Performance and Integrity Information System, SAM, other electronic databases, other agencies, better business bureaus, and published media, etc.).

ATF will determine whether the offeror's current, past-performance information is relevant. For offerors that previously rendered services, ATF will consider such more influential than past performance rendered to another source.

Qualifications and Experience (Factor 2)

ATF will use this adjectival-rating scale (from low to high): Unsatisfactory, Marginal, Satisfactory, Very Good and Exceptional for this factor.

ATF will evaluate the offeror's accomplishments, formal education, certifications, and special skills to determine whether it is suitable/eligible to fulfill ATF's requirement. ATF will also evaluate the offeror's demonstrated time spent working in a particular field/performing similar tasks. ATF will evaluate each offeror's experience based on its breadth, depth, and relevance to the work that will be required under the prospective BOA. ATF will consider the years of experience conducting investigations in the federal environment and experience conducting personnel-security investigations (including overseas experience). ATF may assess the offeror's communication and written skills, also its familiarity with directives governing the conduct of BIs through an interview.

Capabilities (Factor 3)

ATF will use this adjectival-rating scale (from low to high): Unsatisfactory, Marginal, Satisfactory, Very Good and Exceptional for this factor.

ATF will evaluate the offeror's ability and the extent of such to perform the required services in relation to the offeror adhering to the general specifications of ATF's *Contract Background Investigation Program* and utilizing ATF-owned laptop and other required equipment/programs. Capability criteria include, but is not limited to: (1) ability to accept and complete work assignments; (2) IT proficiency; and (3) equipment requirements.

Acceptability (Factor 4)

ATF will use a rating of "Pass" or "Fail" for this factor.

ATF will evaluate the offeror's characteristic and determine whether ATF can manifest the offeror's assent, without exception, to the T&Cs of this RFQ, including attachments and amendments (if any). If an offeror takes exception to any of the T&Cs of this requirement/RFQ, ATF will consider its offer unacceptable.

Location (Factor 5)

ATF will use a "Meet/Does Not Meet" rating for this factor.

ATF will use the offeror's location to determine the proximity from the priority cities.

Offerors residing in a necessary location may be considered for an interview if their quotation responses receive an evaluation determination of "Satisfactory" or higher and they agree to the mandatory requirements.

Price (Factor 6)

ATF has already conducted price analysis and evaluated its pre-determined price to be fair and reasonable. Similarly, ATF will also evaluate the option at FAR clause, 52.217-8, using the prices/rates proposed for the last-ordering period and adding such to all OPs, as applicable, to calculate the total-evaluated price. Evaluating options is for award purposes/consideration and does not obligate the Government to exercise such. An option(s) is not a guarantee and may not be funded due to various reasons (*i.e.*, budgetary constraints, a change in ATF's needs, etc.). Since ATF is providing the rate, it doesn't anticipate any *line items* being significantly over/understated (unbalanced) – Criteria for a quotation being considered unacceptable.

SECTION 4.6 | BASIS FOR AWARD

ATF will use the stated, evaluation methodology to issue competitive, multiple-award BOAs, as needed, to the responsible offerors that are best suited to perform the work and meet/exceed the acceptability standards for the non-price factors and accept the rate for the price factor, thus offering the *best value* (BV) to the Government. FAR 2 defines BV as 'the expected outcome of an acquisition that, in the Government's estimation, provides the greatest, overall benefit in response to the requirement.'

Offerors selected from their responses to this solicitation will be eligible for a BOA. ATF anticipates awarding without discussions and without establishing a competitive range; therefore, offerors are encouraged to ensure their initial quotation(s) includes **the**ir best terms, detailed past performance and applicable experience so ATF can use such, along with their writing sample and interview responses, as the sole and final basis for award. ATF reserves the right to seek clarifications for certain aspects of the offeror's quotation to resolve minor/clerical errors.

ATF may reject any quotation that is evaluated to be non-compliant with the RFQ or reflect a failure to comprehend the complexity and risks of the work to be performed.

ATF will not award to an offeror whose quotation is non-responsive or technically unacceptable; similarly, ATF may not award to an offeror that receives a "No" for Factor 6 as such indicates the quotation is unsatisfactory/unacceptable.